



DECISION

Complaint No. : POS/2491/2019/Adv-M

Name and address of the complainant : Zaheer Ali Bhatti, House No. C-234, Mohalla, Bhains Colony, Road No. 6, District Malir, Karachi.

Name of the Agency Complained against : 1. Karachi Metropolitan Corporation
2. Police

Name & Designation of Investigating Officer : Mir Hussain Ali
Advisor-M

Vetted by :

Subject : ENCROACHMENT UPON PARK IN
CONNIVANCE WITH LOCAL POLICE

COMPLAINT:

Mr. Zaheer Ali Bhatti filed his online complaint dated 18.6.2019, regarding encroachment in a park in connivance with local police and using the same for commercial activities. He therefore requested this Institution to intervene in this matter.

PROCEEDINGS:

2. The complaint admitted under section 10 of the Establishment of the Office of Ombudsman for the Province of Sindh Act 1991, was referred to the Director General Parks & Horticulture, Karachi Metropolitan Corporation and the Senior Superintendent of Police Malir. In response, the Director General vide his letter No.DG/(P&H)/KMC/7/2019 dated 21.8.2019 stated that they do not maintain any park in district Malir, and the matter could pertain to the District Municipal Corporation Malir. The Deputy Superintendent of Police, Sukhan Sub Division vide his letter No. SDPO/Sukhan/430 dated 29.8.2019, stated that after due enquiry it is observed that the plot/land in question situated on Road No. 6, Cattle Colony is KMC land and whenever any assistance is required, the local police will respond effectively. The DSP also reported that the Pesh Imam of the Mosque Farooq e Azam stated that these three commercial establishments, which are encroachments in nature, provide funds for the maintenance of the Mosque and Madressah.

3. Despite continued correspondence with KMC, Police and DMC, no concrete report about the category of this plot and its present status could be brought on record. However, on strict insistence the Deputy Director Land (Lessees) Cattle Colony KMC, submitted his report bearing No. DD:L/KMC/LC/WW/67/2025 dated 23.9.2025, stating that as per available layout plan, this plot is a Park, but no transaction i.e. allotment, etc. has been made up till now.

4. Subsequently, the Investigating Officer visited the site and observed that the subject plot is about 600 square yards in size, and the front of the plot on Road No.6, Cattle Colony, has been encroached and three or four commercial outlets are operative. The rest of the plot is lying vacant without any development. On enquiry from the local residents and the Pesh Imam of the mosque, it was learnt that this piece of land was initially reserved for Eidgah and funeral facilities, but such development has not taken place. The Pesh Imam also accepted that the encroachers are donating funds for the management of the Mosque and Madressah. They also stated that the complainant is a drug addict who files such complaints without any reason.

FINDINGS:

4. From the above proceedings it is clear that this particular piece of land is Government land under KMC's control. Since its location is right opposite the mosque it has been termed as an Eidgah though no official document has been issued by the landowning agency. It is also a fact that the front of this plot has been encroached. Thus it is clear that the complainant has rightly pointed out encroachments on Government land which need to be removed and the plot needs to be formally declared as an Eidgah through proper documentation.

DECISION:

5. As such, I u/s 11 of the Establishment of the Office of Ombudsman for the Province of Sindh Act 1991, direct the Metropolitan Commissioner, Karachi Metropolitan Corporation to get these encroachments removed immediately, and safeguard this plot by developing it into a Park or Eidgah within three months.

“Given under my hand and seal of office”

Sd /-

(Muhammad Sohail Rajput)

Sitara-e-Imtiaz, PAS

OMBUDSMAN SINDH

Karachi, dated 11.11 December, 2025

